Brazoria County District Court

Cause No. 2023-CV-0042

Joshua Lee, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Joshua Lee

Date:	March 28, 2024
Location:	Offices of Santiago & Romero Law Group
Examining attorney:	Stephanie Williams, Ashford & Lyle LLP
Defending attorney:	Eric Phillips, Santiago & Romero Law Group

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record for this part. You can use "the plaintiff."

Q: Understood. Let's start with the accident. Where did it happen?

A: On a surface street in Pasadena, Texas, in the right lane headnig toward a shopping area.

Q: What were you doing right before the collision?

A: I was driving at a normal speed and I signaled to move from the right lane into the middle lane. I checked my mirror and glanced over my shoulder. I didn't see anything beside me.

Q: What happened next?

A: As I started to merge, I felt a hard bump on the driver's side. The other vehicle had come up alongside me and scraped along my door. My car jerked toward the curb, and I had to correct it.

Q: Did you stop after the impact?

A: Yes, I pulled into a parking lot about a hundred feet ahead. The other driver stopped too, and we exchanged information.

Q: When did you first notice pain in your neck?

A: Not right away. About an hour later, I started to feel stiffness at the base of my skull and a dull ache running into my shoulders. By the next morning it was harder to turn my head to check blind spots.

Q: What treatment have you received?

A: I went to an urgent care clinic the same day, and then I saw my primary care doctor. They recommended rest, over-the-counter pain relievers, and a set of physical therapy sessions. I've been attending those sessions twice a week.

Q: How has the neck pain affected your daily life?

A: It's made simple things harder. I have trouble sleeping through the night because I can't find a comfortable position. I've cut back on driving longer distances, and I had to stop going to my weekend tennis league for a while. Lifting groceries also causes a sharp twinge.

Q: Have you returned to any of those activities?

A: Partly. I'm back on light household chores and I drive short trips, but I still get tired and sore by the afternoon. My physical therapist says I'm making progress, though I'm not back to where I was before the accident.

Q: Thank you. Nothing further at this time.